

	Motion to Be Relieved as Counsel OSC re Settled Case	counsel of record for client effective upon filing of a proof of service of the signed order on client. Moving attorney to give notice.
7	Law Offices of Mark B. Plummer PC v. Norred 2025-01502837 Motion to Disqualify Attorney of Record CMC	Defendant Mark W. Norred, CPA's motion to disqualify Mark Plummer, Law Offices of Mark B. Plummer, PC from representing plaintiffs Law Offices of Mark B. Plummer, Mark Plummer and Jocelyn Plummer is DENIED. "A trial court's authority to disqualify an attorney derives from its inherent power, codified at Code Civ. Proc. § 128, subdivision (a)(5), to control the conduct of its ministerial officers and of all other persons connected with its proceedings in furtherance of justice." (<i>Doe v. Yim</i> (2020) 55 Cal.App.5th 573, 581.) "Standing generally requires that the plaintiff be able to allege injury, that is, an invasion of a legally protected interest." (<i>Great Lakes Constr., Inc. v. Burman</i> (2010) 186 Cal.App.4th 1347, 1356.) "Generally, before the disqualification of an attorney is proper, the complaining party must have or must have had an attorney-client relationship with that attorney [to demonstrate standing]." (<i>Id.</i>) Even without an attorney-client relationship, the movant must still show that "some sort of confidential or fiduciary relationship must exist or have existed before a party may disqualify an attorney predicated on the actual or potential disclosure of confidential information." (<i>Id.</i>) "In evaluating alleged conflicts, a court first looks to whether the challenged representation is concurrent or successive." (<i>Walker v. Apple, Inc.</i> (2016) 4 Cal.App.5th 1098, 1106.) The First Amended Complaint alleges that defendant, Mark W. Norred, CPA, is an accountant who provided Plaintiffs with tax return preparation and representation in responding to an audit of the tax returns that Norred had prepared. (FAC, ¶ 3.) Plaintiffs allege that Norred, negligently represented Plaintiffs in the 2017, 2018 and 2019 tax year audits. (FAC, ¶ 6.) Norred seeks to disqualify Law Offices of Mark B. Plummer, PC and Mark Plummer (collectively, "Plummer") from representing Plaintiffs on the grounds Plummer represented him individually and as an officer and majority owner of Drake Traffic Control Services, Inc. dba as Mallard Construction Inc. (Norred Decl., ¶ 2.) Norred contends Plummer represented him in the following five cases. (1) Mark Norred & Drake Traffic Control Services, Inc. v. Samuel Mullen, Case No. 30-2021-01204687. (Norred Decl., Ex. 4); (2) Paveco Construction v. LA Department of Water & Power, Case No. 24STCP04154 (Norred Decl., Ex.

	10); (3) Construction Laborer Trust Funds for Southern California Administrative Company v. Mallard Construction, Inc., Case No. 30-2019-01118743. (Norred Decl., Ex. 10); (4) Mallard Construction v. Faith Electric, Case No. 30-2019-01118743. (Norred Decl., Ex. 3); (5) Alberto Andrade v. Drake Traffic Control Services, Inc., (Norred Decl., Ex. 4). None of these cases involve Norred’s accounting business. (Mark Plummer Decl., ¶ 4.) First, Norred seeks to disqualify Plummer on the grounds he represented Norred as an officer and majority owner of Drake Traffic Control Services, Inc. and/or Mallard Construction Inc. Pursuant to California Rules of Professional Conduct, 1.13, “A lawyer employed or retained by an organization shall conform his or her representation to the concept that the client is the organization itself, acting through its duly authorized directors, officers, employees, members, shareholders, or other constituents overseeing the particular engagement.” (See also <i>La Jolla Cove Motel & Hotel Apartments, Inc. v. Superior Ct.</i> (2004) 121 Cal.App.4th 773, 784 [“In representing a corporation, an attorney’s client is the corporate entity, not individual shareholders or directors, and the individual shareholders or directors cannot presume that corporate counsel is protecting their interests.”].) Therefore, to the extent Plummer represented Norred as an officer or majority owner of the corporations, the client was the corporation and not Norred. Second, Norred argues Billing Statement sent by Plummer on 8-14-25 and 3-27-25 show Norred is a current client of Plummer. (Norred Decl., Exs. 2-3.) However, both Billing Statements are addressed to Drake Traffic Control Services, Inc. and Mallard Construction with attention to Norred, in his capacity as their CFO/Assistant CFO. (Plummer Decl., Exs. 1-2.) Therefore, the Billings Statements fail to show Plummer represented Norred personally or his accounting business as of 8-14-25 or 3-27-25 and is a current client of Plummer. The only case where Plummer appears to have represented Norred both personally and in his capacity as a corporate officer is Mark Norred & Drake Traffic Control Services, Inc. v. Samuel Mullen. In this case Plummer filed a Complaint on behalf of both Norred and Drake Traffic for (1) Partnership Dissolution; (2) Attempted Extortion; and (3) Declaratory Relief. (Norred Decl., Ex. 4.) The case was filed on 06/08/2021 and was informally resolved by the parties without discovery and dismissed 2 months later on 08/20/21. (Mark Plummer Decl., ¶ 4, subd (2).) Therefore, based on this case, Norred has shown Plummer formerly represented Norred. “Conflicts arising out of an attorney’s successive representation of a former client and current client are governed by the substantially related standard. [Citation.]
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		'Where an attorney successively represents clients with adverse interests, and where the subjects of the two representations are substantially related, the need to protect the first client's confidential information requires that the attorney be disqualified from the second representation. For the same reason, a presumption that an attorney has access to privileged and confidential matters relevant to a subsequent representation extends the attorney's disqualification vicariously to the attorney's entire firm.' [¶] The issue of successive representation of a former and a current client is not relevant, however, unless there is a former attorney-client relationship." (<i>Lynn v. George</i> (2017) 15 Cal.App.5th 630, 637.) "The party seeking disqualification has the burden to establish the attorney-client relationship." (Id. at p. 638.) Norred has failed to show the subject of Mark Norred & Drake Traffic Control Services, Inc. v. Samuel Mullen ("Mullen case") and the instant action are substantially related. Specifically, Norred has failed to show the Mullen case had anything to do with Norred's accounting business or that Plummer obtained any confidential information relevant to this case from representing Norred in the Mullen case. Norred has also failed to show that Plummer obtained privileged and/or confidential matters relevant to representation in this case from any of the other 5 cases Norred contends Plummer represented him. Accordingly, the motion to disqualify is DENIED. Moving party to give notice.
9	United Casualty & Surety Insurance Co. v. Rodeo Auto, Inc. 2025-01477225 Motion for Discharge, Award of Costs and Attorney Fees for Deposit and Dismissal of Plaintiff	Plaintiff executed a Motor Vehicle Dealer Bond, Bond No. UCSX900X2150, for defendant Rodeo Auto, Inc. dba Rexera Auto Group ("Rodeo") as principal in the sum of \$50,000.00 ("Bond") pursuant to California Vehicle Code sections 11710 and 11711. Plaintiff contends Defendants have made adverse and conflicting demands upon it regarding the Bond. As a result of these claims against the bond, and since Plaintiff is uncertain as to how much to pay to each claimant or to claimants in the future who may make demand upon its bond, on April 22, 2025, Plaintiff filed a verified complaint for interpleader. Interpleader is a procedure whereby a person holding money or personal property to which conflicting claims are being made by others, can join the adverse claimants and force them to litigate their claims among themselves. (<i>City of Morgan Hill v. Brown</i> (1999) 71 Cal.App.4th 1114, 1122.) Once the stakeholder's right to interplead is established, and he or she deposits the money or personal property in court,